

**SUBSTITUTE FOR
HOUSE BILL NO. 4864**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending section 5456 (MCL 333.5456), as amended by 2002 PA 644.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 5456. ~~(1) "Department" means the department of community~~
2 ~~health.~~

3 **(1)** ~~(2)~~ "Deteriorated paint" means paint or other surface
4 coating that is cracking, flaking, chipping, peeling, or otherwise
5 damaged or separating from the substrate of a building component.

6 **(2)** ~~(3)~~ "Discipline" means 1 of the specific types or
7 categories of lead-based paint activities identified in this part
8 for which an individual may receive training from an accredited
9 training program and become certified by the department.



(3) ~~(4)~~—"Distinct painting history" means the application history, as indicated by its visual appearance or a record of application, over time of paint or other surface coatings to a component or room.

(4) ~~(5)~~—"Documented methodology" means a method or protocol used to do either or both of the following:

(a) Sample and test for the presence of lead in paint, dust, and soil.

(b) Perform related work practices as described in rules promulgated under this part.

(5) ~~(6)~~—"Dust lead hazard" means surface dust in a residential dwelling or child occupied facility that contains a concentration of lead at or in excess of levels identified by the EPA pursuant to section 403 of title IV of the toxic substances control act, Public Law 94-469, 15 U.S.C. ~~USC~~ 2683, or as otherwise defined by rule.

(6) ~~(7)~~—"Elevated blood **lead** level" or "EBL" means ~~for purposes of lead abatement an excessive absorption of lead that is a confirmed concentration of lead in whole blood of 20 ug/dl, micrograms of lead per deciliter of whole blood, for a single venous test or of 15-19 ug/dl in 2 consecutive tests taken 3 to 4 months apart. For purposes of case management of children 6 years of age or less, elevated blood level means an excessive absorption of lead that is a confirmed concentration of lead in whole blood of 10 ug/dl.~~ **the lowest of the following:**

(a) A concentration of lead in whole blood that is equal to or greater than 3.5 micrograms per deciliter.

(b) A concentration of lead in whole blood that is equal to or greater than the blood lead reference value for children, as determined by the Centers for Disease Control and Prevention.



1 (7) ~~(8)~~—"Encapsulant" means a substance that forms a barrier
2 between lead-based paint and the environment using a liquid-applied
3 coating, with or without reinforcement materials, or an adhesively
4 bonded covering material.

5 (8) ~~(9)~~—"Encapsulation" means the application of an
6 encapsulant.

7 (9) ~~(10)~~—"Enclosure" means the use of rigid, durable
8 construction materials that are mechanically fastened to the
9 substrate in order to act as a barrier between lead-based paint and
10 the environment.

11 (10) ~~(11)~~—"EPA" means the United States ~~environmental~~
12 ~~protection agency.~~ **Environmental Protection Agency.**